FY27 PERFORMANCE WORK STATEMENT (PWS)
Portable Latrine and Hand Wash Stations with Cleaning Services
November 2026

Part 1
General Information

1. General: This is a non-personal services contract (Blanket Purchase Agreement [BPA]) under which the Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform Portable Latrine and Hand Wash Stations with Cleaning Services, to include waste disposal, spill prevention, and spill remediation, at Fort Bliss, Texas, and its associated training areas and ranges in Texas and New Mexico. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor, who in turn is responsible to the Government.

1.1. Description of Services/Introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform Portable Latrine and Hand Wash Stations with Cleaning Services at Fort Bliss, Texas, and associated training areas and ranges in Texas and New Mexico as defined in this Performance Work Statement (PWS) except for those items specified. The Contractor shall perform to the highest professional standards and shall maintain a detailed tracking log of all services performed on latrines and hand wash stations. The Contractor shall ensure that all services are conducted in strict compliance with:

- 29 CFR 1910, *Occupational Safety and Health Standards*
- U.S. Army Techniques Publication ATP 4-25.12 (*Unit Field Sanitation Teams*, superseding FM 21-10 *Field Hygiene and Sanitation*)
- U.S. Army Corps of Engineers Manual EM 385-1-1 (*Safety and Health Requirements Manual*)
- Army Regulation (AR) 200-1 (*Environmental Protection and Enhancement*) and 40 CFR Part 503 (*Standards for the Use or Disposal of Sewage Sludge*)
- American National Standards Institute / Portable Sanitation Association International (ANSI/PSAI) Z4.3 (*Sanitation — Non-Sewered Waste-Disposal Systems — Minimum Requirements*)

1.2. Background: Many of the military units stationed at Fort Bliss, Texas, conduct tough, realistic, combined arms and joint operational training events in a desert environment that prepares them for deployment to combat operations and other situations worldwide. Due to the high volume of training events held across Fort Bliss

and its training complex (which spans El Paso County, Texas, and Doña Ana and Otero Counties, New Mexico), there is a recurring need to have reliable, sanitary portable latrine and hand wash station services available for use at the sites. This requirement will provide a Multiple-Award Blanket Purchase Agreement (BPA) contracting vehicle to meet this need for all units stationed and training at Fort Bliss.

1.3. Objectives: The objective is to have the Contractor provide Portable Latrines and Hand Wash Stations with cleaning, restocking, relocation, spill prevention, spill remediation, and off-installation waste disposal services in the areas identified when a BPA Call is placed to maintain unit operational needs, schedules, and priorities.

1.4. Scope: This contract includes all functions, tasks, and responsibilities normally performed by a professional portable sanitation service provider, including:

- Furnishing clean, serviceable, high-wind-resistant (up to 45 MPH) portable latrines and standalone portable hand wash stations meeting ANSI/PSAI Z4.3 standards across all four geographic Subline Item (SLIN) zones (SLIN AA Doña Ana Range, SLIN AB McGregor Range, SLIN AC Oro Grande Range, and SLIN AD Fort Bliss Cantonment & Biggs Army Airfield).
- Timely delivery, set-up, anchoring, joint receipt inspection, in-field relocation, and post-call pick-up of units.
- Scheduled and emergency cleaning, pumping, sanitization, winterization (when required), and restocking of units.
- Development, submission, maintenance, and execution of both a written **Spill Prevention Plan** and a written **Spill Remediation Plan** covering preventative pumping/transport controls, immediate spill containment, disinfection, contaminated soil/surface excavation and removal, off-post disposal, and site restoration.
- Safe transport and disposal of all domestic septage and gray water at state-approved, permitted off-installation treatment facilities.
- The Contractor shall comply with all applicable Federal, State (Texas Commission on Environmental Quality [TCEQ] and New Mexico Environment Department [NMED]), U.S. Department of Labor Service Contract Labor Standards (SCLS) Wage Determinations (WD 2015-5229 for El Paso County, TX, WD 2015-5447 for Doña Ana and WD 2015-5455 for Otero Counties, NM), and Local/Installation laws, rules, and regulations.

1.5. Ordering Period: The term of this Blanket Purchase Agreement (BPA) will be five (5) years, beginning **23 November 2026 and ending 22 November 2031** (unless adjusted at BPA establishment to preserve a full five-year ordering period). Each individual BPA Call will specify its own call performance period, delivery date/time, and pickup date.

- **Quality Assurance:** The Government will evaluate the Contractor's performance under this contract in accordance with (IAW) the Quality Assurance Surveillance Plan (QASP). This plan is a Government-only document primarily focused on what the Government must do to assure that the Contractor has performed IAW the requirements of the contract. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable deficiency rate(s) as illustrated within the PWS and Performance Requirements Summary (PRS). All performance ratings will use (*Exceptional, Very Good, Satisfactory, Marginal, or Unsatisfactory*), as defined in RFO FAR Subpart 42.15, *Contractor Performance Information*. The Government reserves the right to conduct compliance surveillance of any contractual requirement of this acquisition.
- **Hours of Operation:**

1.6.1. Normal Duty Hours and 24/7 Equipment Availability: Emplaced portable latrines and hand wash stations are utilized 24 hours a day, 7 days a week, 52 weeks per year during the active performance period of a BPA Call. Normal Contractor routine servicing, delivery, relocation, pick-up, and administrative duty hours are **0800 to 1700 hours Mountain Time, Monday through Friday**, excluding observed Federal holidays listed in paragraph 1.6.2, or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government-directed facility closings. The Contractor will not be reimbursed for unperformed routine services when the Government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.6.2. Federal Government Holidays:

a. Observed Federal Holidays:

• New Year's Day: 1st day of January
• Martin Luther King Jr.'s Birthday: 3rd Monday of January
• President's Day: 3rd Monday of February
• Memorial Day: Last Monday of May
• Juneteenth: 19th day of June
• Independence Day: 4th day of July
• Labor Day: 1st Monday of September
• Columbus Day: 2nd Monday of October
• Veteran's Day: 11th day of November
• Thanksgiving Day: 4th Thursday of November

• Christmas Day: 25th day of December

b. When one of the above designated legal holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the preceding Friday is observed as a legal holiday. This list of holidays relates to Government duty days and is not intended to supplement or otherwise alter the provisions of any Wage Determination regarding applicable paid holidays.

c. It is understood and agreed between the Government and the Contractor that observance of such days by Government personnel shall not be a reason for an additional ordering period, or entitlement of compensation except as set forth within the contract. In the event the Contractor's personnel work during the holiday, the Contractor may reimburse them; however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked, unless stipulated otherwise (e.g., authorized Emergency Services under CLIN 0007 [SLINs 0007AA–0007AD]).

d. When the Department of the Army or Department of Defense grants excused absence to its employees, the Contractor agrees to continue to provide sufficient personnel to perform critical tasks already in operation or scheduled and shall be guided by the instructions issued by the Contracting Officer (KO) or the Contracting Officer's Representative (COR). Changes in employee work schedules shall comply with the terms and conditions of the contract, to include payment provisions.

e. If Government personnel are furloughed, the Contractor shall contact the KO or the COR to receive directions. It is the Government's decision as to whether the contract price/cost will be affected as a result of Government shutdown and/or furloughed Government employees. In the event a Government shutdown or furloughed Government employee(s) impacts contract price/cost, a negotiated settlement will be reached as deemed appropriate by the KO.

1.6.3. Emergency Services: On occasion, services may be required to support an exercise or contingency plan outside the normal duty hours described above (0800–1700 Mon–Fri); after-hours, weekend, and Federal holiday unscheduled services are considered emergency services and are to be distinguished from routine scheduled services. **Fiscal Authorization Limit:** Only a warranted Contracting Officer has authority to obligate Government funds. The COR may direct emergency services or relocations **ONLY within the funded quantities already obligated on the active BPA Call by the Contracting Officer** (or as authorized in advance by the Contracting Officer). The Contractor's responsibilities for emergency services are described in paragraph 5.7 of this PWS.

1.6.4. Inclement Weather Operations: In cases of severe weather, the KO may authorize exceptions. When exceptions are granted, the Contractor shall make up all missed services within twenty-four (24) hours after the severe weather has terminated,

unless the KO authorizes additional time. Rescheduling to provide make-up services shall not be a basis for a claim by the Contractor for additional compensation.

1.7. Place of Performance: The work to be performed under this contract will be performed at Fort Bliss and its various training areas and ranges spanning across Texas and New Mexico (three [3] counties), organized into four (4) geographic Subline Item (SLIN) zones under each CLIN (0001AA–0007AD):

- **SLIN Suffix AA — Doña Ana Range:** Located in **Doña Ana County, New Mexico** (governed by SCLS Wage Determination No. **2015-5447**);
- **SLIN Suffix AB — McGregor Range:** Located in **Otero County, New Mexico** (governed by SCLS Wage Determination No. **2015-5455**);
- **SLIN Suffix AC — Oro Grande Range:** Located in **Otero County, New Mexico** (governed by SCLS Wage Determination No. **2015-5455**); and
- **SLIN Suffix AD — Fort Bliss Cantonment & Biggs Army Airfield:** Located in **El Paso County, Texas**, including Main Cantonment, Biggs AAF, Fort Bliss Garrison-controlled areas, and El Paso County training areas (governed by SCLS Wage Determination No. **2015-5229**).

1.8. Type of Contract: The Government intends to establish **five (5) Firm-Fixed-Price Blanket Purchase Agreements (BPAs)**. Individual Firm-Fixed-Price BPA Calls will be placed on a **sequential Five-Vendor Rotational Schedule (Vendor 1 through Vendor 5)** in accordance with RFO FAR 12.201-1(e)(3) and Section 5 of the BPA Terms and Conditions so that every awarded BPA holder has an equitable opportunity to receive BPA Call awards.

1.9. General Information:

1.9.1. Quality Control: Quality Control is the responsibility of the Contractor. The Contractor is responsible for the delivery of quality services to the Government in accordance with (IAW) the terms and conditions contained in Federal Acquisition Regulation (FAR) Clause 52.246-4 entitled, *“Inspection of Services—Fixed-Price”* and applicable clauses pertaining to quality control.

1.9.2. The Contractor shall develop, implement, and maintain an effective Quality Control System, which includes a written **Quality Control Plan (QCP)**. The QCP shall implement standardized procedures/methodology for monitoring and documenting contract performance to ensure all contract requirements are met. The Contractor’s QCP must contain a systematic approach to monitor operations to ensure acceptable services are provided to the Government. The QCP, at a minimum, shall address continuous process improvement; procedures for scheduling, conducting, and documentation of inspection; discrepancy identification and correction; corrective action procedures to include procedures for addressing Government-discovered non-conformances; procedures for root-cause analysis to identify the root cause and root-

cause corrective action to prevent re-occurrence of discrepancies; procedures for trend analysis; and procedures for collecting and addressing customer feedback/complaints. The Contractor shall provide to the Government their quality control documentation **within 30 calendar days after BPA award**; changes to the QCP after award shall be submitted to the Contracting Officer (KO) and Contracting Officer's Representative (COR) within five (5) working days prior to the proposed changes thereafter. After acceptance of the quality control plan, the Contractor shall receive the Contracting Officer's acceptance in writing of any proposed change to their QC System in regard to this contract.

1.9.3. Corrective Actions: At any time it is determined by the Contracting Officer that the quality control system, personnel, instructions, controls, tests, or records are not providing results which conform to contract requirements, action shall be taken by the Contractor to correct the deficiency. If a Corrective Action Request (CAR) is issued, the Contractor shall develop a written **Corrective Action Plan (CAP)** which identifies the root cause, Corrective Action (CA) for the root cause, CA for the specific non-conformance, CA to prevent recurrence, and a timeline for completion.

1.9.4. Contracting Officer's Representative (COR): The COR Management System Tool in the Procurement Integrated Enterprise Environment (PIEE) (https://piee.eb.mil) for nomination, tracking, documentation, and management of CORs will be used. The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: Assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, and specifications; monitor Contractor's performance and notify both the KO and Contractor of any deficiencies; coordinate availability of Government-furnished property (if any); and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. **The COR is not authorized to change price, quantity, quality, delivery, period of performance, or any other terms and conditions of the BPA or resulting BPA Call order, nor to obligate funds.**

1.10. Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post-award conference convened by the contracting activity or contract administration office IAW RFO FAR Subpart 42.5, *Post Award Orientation*. The KO, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the KO will

apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be included in the overall contract price at no additional cost to the Government.

1.11. Antiterrorism (AT) and Operations Security (OPSEC):

1.11.1. AT Level I Training: All Contractor employees, including subcontractor employees, requiring access to Army installations, facilities, or controlled access areas shall complete Antiterrorism (AT) Level I awareness training within five (5) calendar days after contract start date or effective date of incorporation of the requirement into the contract, whichever applies. The Contractor shall submit certificates of completion for each affected contract employee and subcontractor employee to the COR (or to the KO, if a COR is not assigned) within five (5) calendar days after completion of training by all employees and subcontractor personnel on a recurring annual basis. AT Level I awareness training is available online at https://jko.jten.mil. If access to a computer is not available, the unit’s Level II Antiterrorism Officer (ATO) will conduct AT Level I training for the Contractor and employees within five (5) calendar days after contract start and maintain a copy of the attendance roster for one year. Any Contractor employee hired after contract start will be required to receive AT Level I training within five (5) calendar days by the ATO, or take the training online and present the training certificate to the ATO/COR within three (3) calendar days. AT Level I training is an annual requirement with the 12-month period starting on the date of initial training and re-certification NLT the last day of the 12-month period. If the requiring activity does not have an ATO, the first ATO in the chain of command will conduct this training.

1.11.2. Access and General Protection/Security Policy and Procedures: Contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by the installation Provost Marshal Office, Director of Emergency Services (DES), or Visitor Control Center (VCC). The Contractor workforce must comply with all personal identity verification requirements as directed by DoD, HQDA, and local Fort Bliss policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.11.3. For Contractors That Do Not Require CAC, But Require Access to a DoD Facility or Installation: Contractor and all associated subcontractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05 / AR 190-13), applicable installation, facility,

and area commander installation/facility access and local security policies and procedures (provided by the Government representative).

1.11.4. iWATCH Training: The Contractor and all associated subcontractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within five (5) calendar days of contract award and within five (5) calendar days of new employees commencing performance, with the results reported to the COR no later than five (5) calendar days from employment start.

1.12. Security:

1.12.1. Security Requirements: N/A for Contractor personnel performing this work for these contract services (no security clearance or DD Form 254 is required).

1.12.2. Physical Security: The Contractor shall be responsible for safeguarding all Government equipment, information, and property provided for Contractor use IAW AR 190-13, *The Army Physical Security Program*. At the close of each work period, Government facilities, equipment, and materials shall be secured.

1.12.3. Security of Classified Items, Systems, and Information: The Contractor will not access, view, possess, or use classified information under this contract. The Contractor shall immediately contact the COR for instructions if access to classified information becomes necessary or if the Contractor inadvertently comes into the possession of classified information while performing services under this contract.

1.13. Safety: The Contractor shall establish and maintain a written **Safety Plan**, of which a **Draft Safety Plan** shall be submitted to the KO at the time of quotation submission (excluded from the 5-page Technical narrative limit). The Contractor's **Final Safety Plan** shall be submitted to the KO and COR no later than (NLT) **10 calendar days** after BPA award.

1.13.1. In order to provide safety control for protection to the life and health of employees and other persons; for prevention of damage to property, materials, supplies, and equipment; and for avoidance of work interruptions in the performance of this contract, the Contractor shall comply with the following Safety and Accident Prevention Standards: 29 CFR 1910, *Occupational Safety and Health Standards*; and U.S. Army Corps of Engineers Manual EM 385-1-1, *Safety and Health Requirements Manual*. The Contractor shall comply with the above and all other applicable DoD, Army, Federal, State (Texas and New Mexico), and Local safety and health requirements.

1.13.2. Reporting of Fire and Safety Hazards: The Contractor shall train personnel to recognize fire and safety hazards and encourage personnel in the performance of their duties to report fire and safety hazards and unsafe conditions to their supervisor. The Contractor shall take corrective action to remedy reported deficiencies IAW the terms of this contract. The COR shall be notified of deficiencies beyond the terms of this contract.

1.13.3. Environment and OSHA: The Contractor shall comply with all local, State (TCEQ and NMED), and Federal environmental and occupational safety laws, rules, and regulations (including AR 200-1 and 40 CFR Part 503). Any apparent conflict between compliance with such local, State, and Federal environmental and occupational safety laws, rules, and regulations and compliance with the requirements of the contract shall be immediately brought to the attention of the KO or authorized representative for final resolution. The Contractor shall notify the KO or authorized representative in writing in addition to any verbal notification of such conflict. The Contractor shall be liable for all fines, penalties, and remediation/cleanup costs which result from violations of, or failure to comply with, all such local, State, or Federal laws, rules, and regulations. All unsafe acts or conditions fostered by the Contractor or Contractor personnel may be grounds for the KO or authorized representative to halt any and all Contractor performance with a commensurate deduction of monies due to the Contractor until such unsafe conditions are corrected. The Contractor shall take due caution not to endanger personnel during performance of this contract. Upon discovery of a serious hazard such as, but not limited to, fire, raw sewage spill, or large fuel spill, the Contractor shall immediately notify the KO, Fort Bliss DPW Environmental Division, and COR.

1.13.4. Reporting Mishaps: The Contractor shall adhere to reporting of mishaps IAW AR 385-10, *The Army Safety Program*, and DA Pam 385-40, *Army Mishap Investigations and Reporting*. In addition, the Contractor shall report: (1) Injury or occupational illness to on-duty Contractors; (2) Damage to GFM, GFP, or GFE provided to a Contractor; and (3) Contractor accidents involving Army property and personnel.

1.13.5. First Aid and Medical Emergencies:

a. The Contractor shall have competent personnel trained and capable of dealing with minor personnel injuries. The Contractor or their employees shall immediately notify their supervisor of any accident requiring emergency medical treatment. The Contractor will, in turn, telephonically notify the KO and COR **within 30 minutes** of the incident, followed by a written report within 24 hours.

b. Emergency medical treatment and services for Contractor personnel are the sole responsibility of the Contractor.

1.13.6. Personnel Safety: The Contractor shall immediately correct all safety deficiencies upon notification of the deficiencies by the KO, designated representative, or COR, and shall notify the KO of the corrective action to be taken.

1.14. Personnel: For purposes of this paragraph, the term “personnel” or “employee(s)” refers to any person performing work related to this contract, including but not limited to, the Contractor’s employees, agents, representatives, or subcontractors. The Contractor shall staff this effort with trained, competent, and capable employee(s) for the discipline they are assigned to. Contractor personnel shall present a clean, neat, and professional appearance. The Contractor shall ensure that employees meet all applicable federal, state, local, and installation certification, licensing, medical requirements, and qualifications to perform all assigned tasks and functions as defined in this contract prior to commencement of work. The Contractor shall not permit any personnel to work under this contract if such person is identified by a Government authorized representative to the Contractor as a potential threat to the health, safety, security, general well-being, or operational mission of the Army and Fort Bliss, Texas. All Contractor personnel shall comply with installation security and access procedures and the Contractor’s Final Safety Plan.

1.14.1. Motor Vehicle Operators: Contractor personnel whose tasks involve operation of any vehicles shall possess a valid U.S. state driver’s license, certificates, and permits applicable for the type and class of vehicle being operated (including vacuum/waste transport tank trucks).

1.14.2. Authorization to Work: Contractor personnel shall either be a United States Citizen or legally authorized to work in the United States.

1.14.3. Speaking, Reading, and Understanding English: The Contractor shall hire and staff personnel who can communicate with Government representatives, and where reading, understanding, and discussing environmental, health, and safety warnings are an integral part of an employee’s duties, Contractor employees shall be able to understand, read, write, and speak the English language fluently. English shall be the only language used with regard to this contract for written correspondence, discussions, service tickets, and other business transactions.

1.14.4. Identification of Contractor Employees:

a. The Contractor (to include subcontractors) shall provide each employee an Identification (ID) Badge, which includes at a minimum, the Company Name, Employee Name, and a color photo of the employee. ID Badges for Key Personnel shall also indicate their job title. ID Badges shall be worn at all times during which the employee is performing work under this contract. Each Contractor (to include subcontractor) employee shall wear the ID Badge in a conspicuous place on the front of exterior clothing and above the waist except when safety or health reasons

prohibit. The Contractor (to include subcontractors) shall be responsible for collection of ID Badges upon completion of the contract or termination of an employee. A written listing of issued identification cards shall be furnished to the KO and COR prior to the contract performance start date and updated within 24 hours to reflect Contractor and subcontractor personnel changes.

b. All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials.

c. Contractor personnel shall ensure that all documents or reports produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.14.5. Conflict of Interest:

a. Organizational Conflict of Interest: Contractor and subcontractor personnel performing work under this contract may receive, have access to, or participate in the development of proprietary or source selection information, or perform evaluation services which may create a current or subsequent Organizational Conflict of Interest (OCI) as defined in RFO FAR Subpart 9.5, *Organizational and Consultant Conflicts of Interest*. The Contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO, and in the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may effect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

b. Employment of Government Personnel: The Contractor shall not knowingly employ any person who is a U.S. Government employee if employing that person would create a conflict of interest. Additionally, the Contractor shall not knowingly employ any person who is an employee of the Government, either military or civilian, unless such person seeks and receives written approval according to DoD 5500.07-R, *Joint Ethics Regulation (JER)*, by the individual's commander or director. A copy of the authorization will be provided to the COR. In addition, the Contractor is prohibited from employing Government Quality Assurance Representatives (QAR) / CORs whom the Contractor knows or should have known are responsible for monitoring any contracts/subcontracts awarded to the service provider.

1.14.6. Contractor Code of Business Ethics and Conduct: Because the aggregate BPA ceiling is $6,500,000.00 over a five-year ordering period, the Contractor shall

comply with FAR 52.203-13, *Contractor Code of Business Ethics and Conduct*, as applicable.

1.14.7. Conduct of Employees: Contractor personnel's conduct shall not reflect discredit upon the Government. The Contractor shall ensure that personnel present a professional appearance. The Contractor's employees shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substances. The Contractor is responsible for ensuring that any Contractor employees providing services under this contract conduct themselves and perform services in a professional, safe, and responsible manner. The Contractor shall remove from the job site any employee for reasons of misconduct or security. In accordance with Department of Defense (DoD) 5500.07-R, *Joint Ethics Regulation*, Contractor employees must avoid being improperly influenced in the execution of their duties under the contract. Particular attention should be paid to acceptance of gifts/gratuities, and on non-disclosure of sensitive or classified information. The Contractor shall ensure employee conduct complies with 41 U.S.C. 2102–2107 (*Procurement Integrity Act*) relative to release of acquisition-related information or actions or discussions which may prejudice future competitions. The Contractor shall ensure no Contractor employees conduct political-related activities or events on United States of America (USA) facilities.

1.14.8. Employee Uniforms: Contractor employees shall be appropriately dressed including any necessary individual protective clothing and Personal Protective Equipment (PPE). Employees will provide identification upon request.

1.14.9. Personnel Health and Hygiene: Employees will maintain a normal level of personal hygiene while in the work area.

1.14.10. Contractor Vehicles:

- **a.** All Contractor vehicles shall be readily identifiable. Identification shall include displaying the Contractor's company name in a clear and unobstructed location on the exterior of the vehicle.
- **b.** Motor vehicles entering the Fort Bliss Operational Area and associated ranges shall be properly licensed, insured, and registered.

1.14.11. Key Personnel: The following personnel are considered Key Personnel by the Government:

- **a. Project Manager (PM) / Alternate PM:** The Contractor shall provide a PM who shall be responsible for the performance of the work. The name, telephone number, and email address of this person and an alternate who shall act for the Contractor when the manager is absent (along with a **24/7 emergency response contact number**) shall be designated in writing to the KO and COR **within five (5) calendar days after contract award**; thereafter any planned changes shall be provided five

(5) business days prior to the expected change and no less than 24 hours after unplanned changes. The PM or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The PM or alternate shall be available between **0800 and 1700 hours (8:00 a.m. through 5:00 p.m.) Mountain Time, Monday through Friday** except Federal holidays or when the Government facility is closed for administrative reasons and maintain 24/7 telephonic reachability for emergency calls.

1.14.12. Supervision of Contractor Employees: The Government will not exercise any supervision or control over Contractor or subcontractor employees while performing work under the contract. Such employees shall be accountable solely to the Contractor, not the Government. The Contractor, in turn, shall be accountable to the Government for Contractor or subcontractor employees.

PART 2
DEFINITIONS & ACRONYMS

2.1. Definitions: Federal Acquisition Regulation (FAR), *Dictionary of US Army Terms*, and AR 25-50 are the references for definitions and acronyms not listed below.

2.1.1. Contractor: The total contractor organization or a separate entity of it, such as an affiliate, division, or plant that performs its own purchasing and services.

2.1.2. Contracting Officer (KO): A person with the authority to enter into, administer, and/or terminate contracts, issue funded BPA Calls, and make related determinations and findings.

2.1.3. Contracting Officer's Representative (COR): An individual designated and authorized in writing by the Contracting Officer to perform specific technical surveillance or administrative functions, without authority to change contract terms or obligate funds.

2.1.4. Controlled Area: A controlled space extending upward and outward from a specified point. This area is typically designated by a commander or director, wherein sensitive information or range operations occur and requires limitations of access.

2.1.5. Defective Service: A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.6. Deliverable: Anything that can be physically or electronically delivered, including plans, Safety Data Sheets, signed service tickets, inspection checklists, or monthly reports.

2.1.7. Key Personnel: Contractor personnel designated as essential to the management and daily operation of the contract (Project Manager and Alternate Project Manager).

2.1.8. Performance Work Statement (PWS): A statement of work for performance-based acquisitions that describes the required results in clear, specific, and objective terms with measurable outcomes.

2.1.9. Physical Security: Protection of the perimeter area, Government property, and assets that prevent the loss or damage of Government property.

2.1.10. Quality Assurance (QA): The various functions, including inspection and surveillance, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

2.1.11. Quality Assurance Surveillance Plan (QASP): A plan describing how the agency will survey, observe, test, sample, evaluate, and document the Contractor's performance in meeting critical performance standards identified in the contract.

2.1.12. Quality Control (QC): Tasks performed by the Contractor to ensure and improve the quality of the organization's output in accordance with its written Quality Control Plan (QCP).

2.1.13. Shall: An imperative command; has a duty to or is required to. Denotes mandatory Contractor obligation.

2.1.14. Subcontractor: Any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

2.1.15. Workday: Normal Contractor servicing and administrative hours (0800 to 1700 hours Mountain Time), while emplaced rental units remain in the field 24/7 during active BPA Calls.

2.1.16. Work Week: Monday through Friday, unless specified otherwise in an individual BPA Call.

2.1.17. Spill Prevention Plan and Spill Remediation Plan: The Contractor's mandatory written environmental plans (PWS 5.8.1) establishing (a) preventative engineering and operational controls to avoid sewage, gray-water, chemical, or fuel spills (Spill Prevention Plan), and (b) step-by-step emergency containment, vacuum recovery, surface/soil disinfection, contaminated soil/material excavation and removal, permitted off-installation disposal, and site restoration procedures (Spill Remediation Plan).

2.2. Acronyms:

Acronym	Definition
ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
ANSI	American National Standards Institute

Acronym	Definition
AOR	Area of Responsibility
AR	Army Regulation
AT	Antiterrorism
ATO	Antiterrorism Officer
ATP	Army Techniques Publication
BPA	Blanket Purchase Agreement
CAP	Corrective Action Plan
CAR	Corrective Action Request
CDR	Contract Discrepancy Report
CFR	Code of Federal Regulations
CLIN	Contract Line Item Number
CONUS	Continental United States
COR	Contracting Officer's Representative
CPARS	Contractor Performance Assessment Reporting System
DA PAM	Department of the Army Pamphlet
DES	Directorate of Emergency Services
DFARS	Defense Federal Acquisition Regulation Supplement
DISS	Defense Information System for Security
DoD	Department of Defense
DPW	Directorate of Public Works
EM	Engineering Manual (U.S. Army Corps of Engineers)
FAR	Federal Acquisition Regulation
FFP	Firm-Fixed-Price
FPCON	Force Protection Condition
FY	Fiscal Year
GFE / GFP	Government Furnished Equipment / Property
HMR	Hazardous Materials Regulations (49 CFR)
IAW	In Accordance With

Acronym	Definition
KO	Contracting Officer
MGRS	Military Grid Reference System
MICC	Mission and Installation Contracting Command
MPH	Miles Per Hour
MST	Mountain Standard Time (UTC-7)
NCIC-III	National Crime Information Center Interstate Identification Index
NLT	No Later Than
NMED	New Mexico Environment Department
OCI	Organizational Conflict of Interest
ODC	Other Direct Costs
OPSEC	Operations Security
OSHA	Occupational Safety and Health Administration
PIEE	Procurement Integrated Enterprise Environment
PM	Project Manager
POC	Point of Contact
PPE	Personal Protective Equipment
PRS	Performance Requirements Summary
PSAI	Portable Sanitation Association International
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan
QCP	Quality Control Plan
RA	Requiring Activity
RFO	Revolutionary FAR Overhaul
SCLS	Service Contract Labor Standards
SDS	Safety Data Sheet (formerly MSDS)
SLIN	Subline Item Number
SPM	Surveillance and Performance Monitoring (PIEE Module)

Acronym	Definition
TCEQ	Texas Commission on Environmental Quality
TE	Technical Exhibit
TSDB	Terrorist Screening Database
UID	Unique Identification Number (Unit Serial Number)
U.S.C.	United States Code
VCC	Visitor Control Center
WAWF	Wide Area Workflow (PIEE Invoicing Module)

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. Government Furnished Items and Services:

3.1. Services: The Government will not provide any services, facilities, utilities (to include water or electric), equipment, or materials to execute tasks in conjunction with this contract.

3.2. Facilities: The Government will provide access to the assigned work area (cantonment, airfield, and training range locations specified in each BPA Call). The Government will not provide any additional facilities to the Contractor.

3.3. Utilities: The Government will not provide any utilities (including fresh water or electricity) to the Contractor. The Contractor shall furnish and transport 100% of required fresh water from off-installation sources.

3.4. Equipment: The Government will not provide tools, equipment, or materials to execute tasks in conjunction with this contract.

3.5. Materials: The Government will not supply any additional material to the Contractor.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Items and Responsibilities:

4.1. Contractor Furnished Items: Everything included in this paragraph and its subparagraphs is basic to the contract and shall be included in the firm-fixed unit prices.

4.1.1. The Contractor shall provide all labor, supervision, transportation, vehicles, water, supplies, equipment, materials, spill-containment and soil/surface remediation kits,

facilities, and off-installation waste disposal services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2. Materials: The Contractor shall provide all materials and consumables needed IAW this contract, including biodegradable 2-ply toilet paper (minimum 3 rolls per latrine), antibacterial hand soap, single-use paper towels, clean fresh water for hand wash stations, non-formaldehyde commercial sanitizing/deodorizing chemicals, germicidal surface detergents, non-toxic biodegradable winterization/antifreeze additives (during freezing temperatures), interior service date/time log stickers, and complete onboard vehicle spill-containment and spill-remediation kits (absorbent booms/pads, granular sorbents, EPA-registered disinfectant or hydrated lime for raw sewage remediation, excavation shovels, heavy-duty disposal bags, and PPE).

4.3. Equipment: The Contractor shall provide equipment to support the requirements of this contract to include, but not limited to: single-occupancy high-wind-resistant portable latrines, standalone two-person portable hand washing stations with soap and paper towel dispensers, steel rebar stakes/ballast anchoring hardware, personal protective equipment (PPE), sealed/leak-proof vacuum support trucks and equipment, and ensure that the waste tank shall be recharged with a sufficient quantity of non-formaldehyde chemicals to ensure an odorless unit.

4.4. Responsibilities of the Contractor:

a. The Contractor shall provide a safe working environment for key consultants and all persons in his/her employ as prescribed by Engineering Manual (EM) 385-1-1, *"Safety and Health Requirements Manual"*, and 29 CFR 1910, *"Occupational Safety and Health Standards"*. The Contractor shall be responsible for all damages to persons and property that occur in connection with the work and service under this contract, without recourse against the Government.

b. The Contractor shall exercise extreme caution to protect building finishes, private property, military property, and range structures from damage during the performance of these contract requirements. The Contractor shall be responsible for all loss or damage of whatsoever kind and nature to all Government property, while in the performance of these contract requirements, which result in whole or in part from the negligence or omissions of the Contractor, any of his subcontractors, or any employee, agent, or representative of the Contractor or subcontractor(s).

c. The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and waste-hauling/disposal permits, and for complying with any Federal, State (Texas and New Mexico), and Municipal laws, codes, and regulations applicable to the performance of the work.

d. The Contractor shall also be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

PART 5
SPECIFIC TASKS

5. General: The Contractor shall provide all skilled personnel, equipment, supplies, tools, materials, supervision, and other items necessary to perform this prescribed project as defined in this PWS to meet the performance requirements across all four geographic SLIN zones (SLIN AA Doña Ana Range, SLIN AB McGregor Range, SLIN AC Oro Grande Range, and SLIN AD Fort Bliss Cantonment & Biggs AAF), except for those items specified.

5.1. Portable Latrines: The Contractor shall furnish clean, serviceable portable latrines in the quantities and geographic SLIN zones specified in each individual BPA Call meeting **ANSI/PSAI Z4.3** (*Sanitation — Non-Sewered Waste-Disposal Systems — Minimum Requirements*).

5.1.1. Serviceable Unit Standards:

a. Each latrine shall be in new or like-new condition, single-occupancy type; roofs, sides, and floors shall be free of leaks, cracks, and holes.

b. Each unit shall be well ventilated and screened (**fly-tight**) to vent fumes and prevent insect entry.

c. Each unit shall have a tight-fitting door with a spring-loaded closing mechanism on the door to close it when released. The door shall have sufficient tension placed on it to prevent wind from blowing it open when the unit is unoccupied. Each door shall have a workable inside latch/lock.

d. Container waste holding tanks shall be watertight and free of leaks.

e. Each latrine shall have an undamaged, functional commode toilet seat with cover, urinal, and toilet paper holder(s) stocked with a minimum of three (3) full rolls of biodegradable toilet paper; all hinges and other pertinent parts shall be undamaged and usable.

f. Each unit shall be anchored and able to withstand wind velocity up to **45 Miles Per Hour (MPH)** and shall be securely staked/anchored to ensure personnel safety and prevention of tipping over. The waste tank shall be recharged with a sufficient quantity of non-formaldehyde commercial sanitizing/deodorizing chemicals (and non-toxic winterization solution during freezing temperatures) to ensure an odorless unit.

g. Each unit shall have a clearly readable **Unique Identification Number (UID / Serial Number)** visible on the exterior of the unit for identification, and an interior **Date/Service Log Sticker** (Attachment 1) to record each cleaning visit.

5.1.2. Unserviceable Units: Any unit that does not meet the above standards, whether identified by the Contractor or Government personnel, shall be repaired on-site or replaced within **twenty-four (24) hours** with a serviceable unit at no additional cost to the Government. Government personnel will notify the COR of unacceptable deliverables.

5.2. Portable Hand Washing Stations: The Contractor shall be responsible for providing adequate standalone portable hand washing stations in the quantities and geographic SLIN zones specified in each individual BPA Call to support at minimum two (2) individuals at a time that meet the performance standards in **ANSI/PSAI Z4.3**. Historical data indicates ten (10) individuals are on site per station at any given time.

5.2.1. Serviceable Unit Standards:

a. Each standalone hand washing station shall be in new or like-new condition; structure shall be free of leaks, cracks, and holes, and anchored to withstand winds up to 45 MPH.

b. Units shall have functional soap dispenser(s) and paper towel dispenser(s) stocked to full capacity to support the unit.

c. Units shall have separate, self-contained fresh-water and gray-water holding tanks with sealable lids, filled to 100% capacity with clean water transported by the Contractor.

d. Each unit shall have a clearly readable **Unique Identification Number (UID / Serial Number)** visible on the exterior of the unit for identification and a service date/time log sticker.

5.2.2. Unserviceable Units: Any hand washing station that does not meet the above standards, whether identified by the Contractor or Government personnel, shall be repaired on-site or replaced within **twenty-four (24) hours** with a serviceable unit at no additional cost to the Government.

5.3. Delivery, Set-up, and Pick-up:

5.3.1. The Contractor shall coordinate with the COR prior to delivery of any latrines or hand wash stations to ensure proper delivery of the equipment and joint inspections. Supported military units will provide a POC to be on site when equipment is delivered for joint receipt inspection (Technical Exhibit 1) with the Contractor and to report any discrepancy to the COR within two (2) hours of the inspection; additionally, the Contractor shall pick up equipment within **forty-eight (48) hours** once the training event / BPA Call period is completed.

5.3.2. The Contractor shall deliver units to the specified building locations or **8-digit Military Grid Reference System (MGRS) grid coordinates** specified in each individual BPA Call across the four geographic SLIN zones: **SLIN AA (Doña Ana Range, Doña Ana County, NM)**, **SLIN AB (McGregor Range, Otero County, NM)**, **SLIN AC (Oro Grande Range, Otero County, NM)**, and **SLIN AD (Fort Bliss Main Cantonment, Biggs Army Airfield, and El Paso County, TX training areas)**. All units shall be delivered, staked/anchored, and placed at the exact grid coordinates specified on the BPA Call.

5.3.3. The Contractor shall have all units delivered, set-up, anchored, stocked, and in full operational order **NLT 0800 hours (8:00 AM) on the first day** of the requested performance period (or at least 24 hours prior to the training event start time as specified on the BPA Call) for each requested unit location.

5.3.4. The Contractor shall complete the turn-in inspection (Technical Exhibit 1), pump/clean, and remove all units from the area within **forty-eight (48) hours** after the end of the BPA Call performance period with prior coordination with the COR.

5.3.5. The services of initial delivery, placement, set-up, 45 MPH wind anchoring, joint inspection, and post-call pick-up/removal shall be inclusive to the daily rental unit prices and shall not be charged separately.

5.4. Relocations: Due to exercise planning changes or tactical unit movement, the Government may require in-field relocation of emplaced portable latrines and portable hand washing stations after initial placement. Relocations will typically range within two (2) to three (3) miles of the coordinated grid locations, while the funded number of moves allowed for latrines and hand wash stations will be specified on the BPA Call. Only a warranted Contracting Officer may obligate funds; the COR may direct relocations ONLY within the funded quantities obligated on the active BPA Call.

5.4.1. The Contractor shall pump/secure the units prior to movement to prevent transit spills, relocate the units to the new grid coordinates, re-anchor, and recharge/service the units **within twenty-four (24) hours** of notice from the COR.

5.5. Cleaning & Stocking of Units:

5.5.1. The Contractor shall clean and service the portable latrines on a regularly scheduled basis as specified on each individual BPA Call (standard baseline: twice weekly per unit) during normal operating hours (0800–1700 Mon–Fri) to provide a sanitary environment for the prevention of spreading disease:

- **a.** Latrines shall be pumped/emptied of all waste materials into sealed, leak-proof vacuum trucks and shall be refilled/recharged with standard non-formaldehyde commercial sanitizing/deodorizing chemicals (and non-toxic biodegradable winterization solution during freezing temperatures).

b. Hand washing stations shall be pumped/emptied of all gray water and all fresh-water tanks shall be refilled to 100% capacity with clean water transported from off-installation sources by the Contractor.

c. All units shall be disinfected with a germicidal detergent each time the unit is serviced and all detergent residues shall be wiped dry prior to departing the unit.

d. Each latrine shall be damp-cleaned on all interior and exterior surfaces of the unit so that they are free of graffiti, human waste, soiled toilet articles, and dirt; sanitized; and left ready for immediate occupant usage.

e. Each hand washing station shall be damp-cleaned on all surfaces of the unit so that they are free of waste, soiled articles, soap residue, and dirt; sanitized; and left ready for immediate usage.

5.5.2. The Contractor shall leave the area in and around the latrine(s) and hand washing station(s) in a **sanitary state**. A sanitary state is defined as the immediate **two (2) foot perimeter area** surrounding the unit(s) being litter-free, with zero evidence of any waste or gray-water spill from the unit(s) either while filling or emptying. All pumped human waste (septage) and gray water shall be transported off-installation and disposed of strictly at state-approved, permitted municipal or commercial wastewater treatment facilities in compliance with Federal (40 CFR Part 503), Texas (TCEQ), New Mexico (NMED), and Fort Bliss (AR 200-1) environmental regulations.

5.5.3. The Contractor shall restock each latrine with a minimum supply of **three (3) full rolls** of clean toilet paper in addition to any remaining partial rolls. Toilet paper must be biodegradable and safe for wastewater treatment facilities or septic systems.

5.5.4. The Contractor shall restock the hand washing stations by refilling all soap dispensers, paper towel holders, and fresh-water tanks to full capacity.

5.5.5. At the time of service, the Contractor shall update the interior Date/Service Log Sticker (Attachment 1) and provide the COR (or on-site Government receiving official) with a completed, signed **Delivery/Service Performance Ticket** in accordance with BPA Terms Section 10 (indicating BPA number, BPA Call number, SLIN, date/time, grid location, itemized services performed, and signature of the Contractor and Government receiving official, or GPS/date-stamped verification at unmanned range sites).

5.5.6. The Contractor shall maintain **Safety Data Sheets (SDS)** (formerly MSDS) on the vehicle during delivery, pick-up, and cleaning—within the passenger cabin in a clearly marked binder in case the driver is unavailable or unconscious.

5.5.7. The Contractor shall provide transportation for all chemicals in accordance with Hazardous Materials Regulations (HMR), Title 49 Code of Federal Regulations (CFR). Chemicals shall never be stored in the passenger compartment of the vehicles.

5.6. Maintenance: The Contractor shall perform routine scheduled maintenance on all units to ensure continuous serviceability.

5.6.1. If repairs are required, they will be performed during the scheduled servicing or the unit will be replaced within **twenty-four (24) hours** with a serviceable unit at no additional cost to the Government.

5.6.2. Any unit, whether anchored or not, which has tipped over due to weather or personnel use shall be uprighted, re-anchored, pumped, cleaned, sanitized, and restocked (and any ground spillage remediated in accordance with the Contractor's Spill Remediation Plan in paragraph 5.8.1) within **twenty-four to forty-eight (24–48) hours** after notification by the KO or COR at no additional cost to the Government.

5.6.3. At the time of maintenance other than routine, the Contractor shall provide the COR with a signed service performance ticket indicating the maintenance performed on the date that the service was performed.

5.7. Emergency Services: The Government has the right to request emergency portable latrine/hand-wash station delivery or unscheduled emergency cleaning services in addition to the scheduled cleaning requirements, compensated at the established firm-fixed fee per trip drop off/service. The Contractor shall maintain a 24/7 emergency point of contact and shall have **twenty-four (24) hours** to be on site and deliver or clean/restock the requested unit(s) after authorized **24/7 notification** is received (including notifications issued outside normal duty hours, on weekends, or on observed Federal holidays).

5.7.1. Weekend services, observed Federal holiday services, or unscheduled services requested outside normal duty hours (before 0800 or after 1700 Mon–Fri) are considered emergency services and are to be distinguished from routine scheduled services. **Fiscal Authorization Limit:** Only a warranted Contracting Officer may obligate Government funds; emergency services will be performed ONLY when authorized by the KO or directed by the COR against funded quantities already obligated on the active BPA Call prior to performance.

5.8. Deliverables:

5.8.1. Written Spill Prevention Plan and Spill Remediation Plan: The Contractor shall develop, submit, maintain, and execute both a written **Spill Prevention Plan** and a written **Spill Remediation Plan**, which shall be submitted to the KO and COR **NLT fifteen (15) calendar days after BPA award**.

a. **Spill Prevention Plan Requirements:** At a minimum, the Spill Prevention Plan shall detail preventative engineering and operational controls during vacuum pumping, hose connection/disconnection, chemical recharging, in-field unit relocation, and highway/range transport to prevent accidental releases of raw

sewage, gray water, sanitizing chemicals, or vehicle fluids (fuel, oil, hydraulic fluid), including positive-locking hose couplings, drip pans/secondary containment during transfers, pre-trip tank/valve integrity checks, 45 MPH wind anchoring, and mandatory onboard spill-containment kits on 100% of Contractor service vehicles.

b. **Spill Remediation Plan Requirements:** At a minimum, the Spill Remediation Plan shall establish step-by-step emergency response, containment, decontamination, soil/surface remediation, and site restoration procedures for any accidental release of human waste (septage), gray water, treatment chemicals, or petroleum/vehicle fluids on paved cantonment surfaces or unpaved desert training ranges, including: (1) immediate physical containment and diking to prevent runoff into storm drains or arroyos; (2) vacuum recovery of liquid waste and application of sorbents; (3) application of EPA-registered hospital-grade disinfectant/bactericide or hydrated lime to sanitize affected paved or soil surfaces; (4) excavation, removal, and containerization of contaminated soil, gravel, or absorbent media; (5) lawful off-installation transport and disposal of all contaminated remediation waste at a permitted disposal facility; and (6) site restoration and post-remediation clearance inspection with the COR and Fort Bliss DPW Environmental Division.

c. **Spill Notification and Remediation Execution:** The Contractor shall execute due diligence in the prevention of spills. **Any and all spills, regardless of size**, shall be immediately contained, reported telephonically to the Fort Bliss DPW Environmental Division and the COR **within one (1) hour**, documented in a written **Spill Incident and Remediation Completion Report within twenty-four (24) hours**, and 100% cleaned up and remediated IAW the approved Spill Prevention Plan and Spill Remediation Plan, Federal, State (TCEQ / NMED), and Local laws, and Environmental Division guidance at the sole responsibility and expense of the Contractor (to include any associated regulatory fines, laboratory testing, or disposal fees).

5.8.2. Safety Data Sheets (SDS): The Contractor shall provide the **Safety Data Sheets (SDS)** of all proposed cleaning, sanitizing, deodorizing, spill-remediation, and winterization chemicals to be used in the performance of this contract **at the time of quotation submission**. If at any time after the commencement of work the chemicals are to be changed, the Contractor shall provide the new proposed chemical SDS to the KO and COR for written approval **fifteen (15) calendar days** prior to the proposed change.

5.8.3. Monthly Reports: The Contractor shall provide a consolidated **Monthly Service Report** to the COR **NLT the 5th calendar day of each month** covering the preceding month's BPA Calls. At a minimum, the report shall contain active BPA Call numbers, geographic location, unit UIDs/quantities deployed and cleaned, dates and grid

locations of scheduled/emergency cleanings and relocations, off-post waste disposal verification, and any spill remediation or vandalism/weather damage reports.

5.8.4. Monthly Invoicing via WAWF/PIEE: Following COR verification and acceptance of the Monthly Service Report (due NLT the 5th calendar day of the month per 5.8.3) and supporting signed delivery/service tickets, the Contractor shall submit a monthly summary invoice electronically through **Wide Area Workflow (WAWF / PIEE)** (https://piee.eb.mil) in accordance with DFARS 252.232-7003, DFARS 252.232-7006, and BPA Terms Section 11 **NLT the 10th calendar day of the following month** (or upon BPA Call expiration).

5.8.5. Summary of Required PWS Deliverables:

Item #	Deliverable Title	PWS Ref	Due Date / Frequency	Submit To
1	Draft Safety Plan	1.13	At time of quotation submission	KO (with Quotation)
2	Chemical Safety Data Sheets (SDS)	5.8.2	At time of quotation submission & 15 calendar days prior to any change	KO and COR
3	Employee Identification Card / Badge Listing	1.14.4.a	Prior to contract performance start date & updated within 24 hours of personnel changes	KO and COR
4	Key Personnel (PM / Alt PM & 24/7 Emergency POC) Designation	1.14.11.a	Within 5 calendar days after BPA award	KO and COR
5	AT Level I & iWATCH Training Certificates / Rosters	1.11.1 & 1.11.4	Within 5 calendar days after training completion (Training completed within 5 calendar days of start/hire)	COR
6	Final Safety Plan	1.13	NLT 10 calendar days after BPA award	KO and COR
7	Written Spill Prevention Plan and Spill Remediation Plan	5.8.1	NLT 15 calendar days after BPA award	KO and COR.
8	Written Quality Control Plan (QCP)	1.9.2	Within 30 calendar days after BPA award	KO and COR
9	Joint Inspection Report for Receipt and Turn-In (Tech Exh 1)	5.3.1 & 5.9.2	Upon initial delivery/receipt and post-call turn-in on every BPA Call	COR and Using Unit POC
10	Signed Delivery / Service / Relocation / Maintenance Tickets	5.5.5 & 5.6.3	At time of each delivery, scheduled cleaning, relocation, maintenance, or emergency service	COR / Gov Receiving Official

Item #	Deliverable Title	PWS Ref	Due Date / Frequency	Submit To
11	Accident / Mishap & Spill Remediation Incident Reports	1.13.5 & 5.8.1.c	Mishaps: 30 min telephonic / 24 hr written; Spills: 1 hr telephonic / 24 hr written remediation report	KO, COR, & DPW Env.
12	Monthly Service Report	5.8.3	NLT the 5th calendar day of each month	COR
13	Monthly Summary Invoice (with Signed Tickets & Accepted Report)	5.8.4	NLT the 10th calendar day of the following month via WAWF/PIEE (https://piee.eb.mil)	WAWF / PIEE (COR & DFAS)
14	Corrective Action Plan (CAP) / CDR Written Reply	1.9.3 & 5.9.3	Within timeframe specified by KO/COR when a CAR or CDR is issued	KO and COR

5.9. Inspection Requirements: The Contractor shall provide quality services and products IAW this contract.

5.9.1. The Contractor shall perform an inspection of all emplaced units after winds over **45 MPH**. The Contractor shall proceed with any required maintenance and uprighting/re-sanitization standards illustrated in paragraph 5.6, *Maintenance*, as necessary.

5.9.2. Joint Inspection: The Contractor and the COR (or designated unit POC) shall conduct a joint inspection of the unit(s) being delivered and turned in using **Technical Exhibit 1 (*Portable Latrines Inspection Report for Receipt and Turn-In*)**. All unit Unique Identification Numbers (UIDs) shall be noted upon delivery on the receipt/inspection checklist form. Any discrepancies shall be noted on Technical Exhibit 1 at the time of delivery to include the unit(s) UID and a description of the specific discrepancy. The names of the Contractor representative and COR/unit POC shall be printed on the receipt form and then signed and dated. The Contractor shall be responsible for obtaining the required information and signatures. The Contractor and the COR shall retain a copy of the signed receipt and checklist form.

5.9.3. When the Contractor's performance is unsatisfactory, a **Contract Discrepancy Report (CDR)** shall be issued. If a CDR has to be issued, the Contractor shall reply in writing, giving the root-cause reason for the unsatisfactory condition, what immediate corrective action has been taken, and systemic procedures to prevent recurrence.

PART 6
APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

6.1. The Contractor (to include subcontractors) must abide by all applicable regulations, publications, manuals, and local policies and procedures:

- Army Mishap Investigations and Reporting (*DA Pam 385-40*)
- Environmental Protection and Enhancement (*AR 200-1*) and U.S. EPA Standards (*40 CFR Parts 112, 260–279, and 503*)
- Hazardous Materials Regulations (*49 CFR Parts 100–185*)
- Joint Ethics Regulation (*DoD 5500.07-R*)
- National Agency Check / Adjudication Standards (*32 CFR § 147.24*)
- Occupational Safety and Health Standards (*29 CFR 1910*)
- Physical Security Program (*DoD 5200.08-R*)
- Sanitation — Non-Sewered Waste-Disposal Systems — Minimum Requirements (*ANSI/PSAI Z4.3*, current edition superseding 2005 edition)
- The Army Physical Security Program (*AR 190-13*) and *Army Directive 2014-05*
- The Army Safety Program (*AR 385-10*)
- U.S. Army Corps of Engineers Safety and Health Requirements Manual (*EM 385-1-1*)
- U.S. Army Techniques Publication *ATP 4-25.12*, *Unit Field Sanitation Teams* (superseding *FM 21-10, Field Hygiene and Sanitation*)
- U.S. Department of Labor Service Contract Labor Standards (SCLS) Wage Determinations: *WD 2015-5229* (El Paso County, TX), *WD 2015-5447* (Doña Ana County, NM) and WD 2015-5455 (Otero County, NM)

6.2. Forms: Mandatory records and report forms are listed below:

- **Technical Exhibit 1:** *Portable Latrines Inspection Report for Receipt and Turn-In* (Mandatory for joint delivery and turn-in inspections under PWS 5.3.1 and 5.9.2).
- **Attachment 1:** *Portable Toilets – Post-Wide Daily Inspection Work Sheet* (Used for daily/random quality assurance surveillance).

(Note: DD Form 254 is Not Applicable per PWS Section 1.12.1 as no classified access is required under this contract.)

PART 7
Service Delivery Summary

7. General: The Contractor service requirements are summarized into performance objectives that relate directly to mission-essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

7.1. Performance Evaluation: The Government will periodically evaluate Contractor performance to determine whether or not the requirements are being met. Re-performance of unacceptable services at no additional cost is the preferred course of action when appropriate. In the case of Corrective Action Requests (CAR) issued as the result of surveillance, the contracting office shall take appropriate measures according to the *"Inspection of Services—Fixed-Price"* clause (FAR 52.246-4).

7.2. Service Delivery Summary — Performance Requirements Summary (PRS) for Latrines, Hand Wash Stations, and Cleaning Services: The Contractor service requirements are summarized into performance objectives that relate directly to mission-essential items. The standard relates to timeliness, quality, or quantity (metrics) of service required by the Contractor as stated in the PWS verbiage. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement.

Performance Objective (The Service required—usually a shall statement)	**Standard**	**Performance Threshold (This is the maximum error rate. It could possibly be "Zero deviation from standard")**	**Incentive (Positive and/or Negative)**
1. Combating Trafficking in Persons (FAR 52.222-50(c))	The Contractor shall notify its employees of the United States Government's zero-tolerance policy described in paragraph (b) of FAR 52.222-50 and the actions that will be taken against employees for violations of this policy (including removal from the contract, reduction in benefits, or termination of employment).	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPARS system; Contractor shall re-perform/correct immediately.
PRS # 1 — Quality Control Plan (PWS 1.9.2) The Contractor shall	Provide to the Government written quality control documentation within 30 calendar days after BPA award.	100% Compliance	Government will withhold approval of work schedule until QCP is accepted by the KO.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be "Zero deviation from standard")	Incentive (Positive and/or Negative)
provide and maintain a written Quality Control Plan (QCP).	Changes shall be submitted to the KO and COR within 5 working days prior to the proposed change.		
PRS # 2 — Unit Serviceability (PWS 5.1 & 5.2) The Contractor shall provide Serviceable Unit Standards.	Each portable latrine and standalone hand washing station shall meet American National Standard for Sanitation, Non-Sewered Waste-Disposal Systems Requirements, **ANSI/PSAI Z4.3**, and all physical, *fly-tight* screening, self-closing door, inside lock, coat hook, 45 MPH wind anchoring, UID, and date-sticker standards in PWS 5.1.1 & 5.2.1; unserviceable units replaced within 24 hours.	100% Compliance	First failure will result in the issuance of a Corrective Action Request (CAR) and 24-hour replacement. Continuance of not meeting performance standard (2 or more) will require a formal Corrective Action Plan (CAP) at the discretion of the KO.
PRS # 3 — Unit Servicing (PWS 5.5 & 5.6) The Contractor shall provide Cleaning and Stocking of Units (1 Each = 1 Scheduled Service Visit per Unit).	The Contractor shall clean the portable latrines and hand wash stations during normal operating hours (0800–1700 Mon–Fri) on the schedule specified in each BPA Call to provide a sanitary environment. Pump waste/gray water, disinfect with germicidal detergent, clean 2-ft perimeter, restock min 3 rolls biodegradable toilet paper, soap, paper towels, and 100% fresh water, update date sticker, and provide signed service ticket.	100% Compliance	First failure will result in the issuance of a Corrective Action Request (CAR) and immediate re-performance. Continuance of not meeting performance standard (2 or more) will require a formal Corrective Action Plan (CAP) at the discretion of the KO.
PRS # 4 — Delivery, Set-up & Anchoring of Latrines & Hand Wash Stations (PWS 5.3.1–5.3.3) The Contractor shall deliver, set up, and anchor Latrines & Hand Wash Stations.	Deliver, set up, and securely stake/anchor (against 45 MPH winds) fully serviceable units at specified 8-digit MGRS grid coordinates/locations for each BPA Call NLT 0800 hours (8:00 AM) on the first day of the call period (with joint Technical Exhibit 1 inspection).	95% Compliance	Contractor shall correct or re-perform within 4 hours of notification at no additional cost to the Government.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be "Zero deviation from standard")	Incentive (Positive and/or Negative)
PRS # 5 — Unit Pick-up (PWS 5.3.1 & 5.3.4) The Contractor shall pick up all latrines and hand wash stations once training/event is completed.	Complete turn-in Technical Exhibit 1 inspection, pump/clean, and remove all units within 48 hours of training completion / BPA Call expiration.	95% Compliance	Contractor shall remove units. If left over 5 calendar days on more than 3 calls per quarter, a formal Contract Discrepancy Report (CDR) will be issued.
PRS # 6 — Relocations (PWS 5.4 & 5.4.1) Relocations will be required to support training and shall be on station within 24 hours of notification to the vendor.	Pump/secure prior to movement, relocate, re-anchor, and recharge units at new grid coordinates within 24 hours of COR notification (when directed against KO-funded call quantities).	100% Compliance	Contractor shall complete relocation. Failure will result in mandatory re-performance within 4 hours at no additional cost to the Government.
PRS # 7 — Emergency Response (PWS 5.7 & 5.7.1) The Contractor shall perform authorized emergency service.	Deliver emergency units or complete emergency pumping, cleaning, sanitization, and restocking within 24 hours of authorized 24/7 notification (including after hours, weekends, and Federal holidays, within KO-funded call quantities).	100% Compliance	Failure will result in immediate CDR issuance and price deduction for unperformed emergency service.
PRS # 8 — Spill Prevention Plan, Spill Remediation Plan & Environmental Control (PWS 5.8.1 & 5.8.2) The Contractor shall maintain and execute a written Spill Prevention Plan and a written Spill Remediation Plan, submit Chemical SDSs, and dispose of all waste off-post at permitted facilities.	Submit written **Spill Prevention Plan** and **Spill Remediation Plan** NLT 15 calendar days after BPA award; equip 100% of vehicles with spill-containment and remediation kits and cab SDS binders; report all spills within 1 hour (written remediation report within 24 hours); execute full containment, disinfection, contaminated soil/surface remediation, and off-post waste disposal. AQL: 100%	100% Compliance	Immediate spill containment, cleanup, and full site remediation at Contractor's sole expense. Contractor is liable for all regulatory fines, testing, and disposal fees.
PRS # 9 — Monthly Service Reports & WAWF/PIEE Invoicing (PWS 5.8.3 & 5.8.4)	Submit Monthly Service Report to COR NLT the 5th calendar day of each month; following COR acceptance of the Monthly	100% Compliance	Invoices submitted prior to COR acceptance of the Monthly Report or lacking signed service

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Incentive (Positive and/or Negative)
The Contractor shall submit timely Monthly Reports and WAWF summary invoices.	Report and signed service tickets, submit monthly summary invoice via WAWF/PIEE NLT the 10th calendar day of the month.		tickets will be rejected in WAWF/PIEE.

TECHNICAL EXHIBIT 1

PORTABLE LATRINES INSPECTION REPORT FOR RECEIPT AND TURN-IN

(Please Print)

CONTRACT / BPA NO.: _____

RECEIPT NUMBER: _____

BPA CALL NO. & SLIN (AA–AD): _____

DATE OF ISSUE/DELIVERY: ____/____/20____

DATE OF TURN-IN: ____/____/20____

USING UNIT / ORGANIZATION: _____

GRID COORDINATES / LOCATION: _____

Check Mark all items that are acceptable.

INSPECTION ITEMS	RECEIPT	TURN-IN	IF UNACCEPTABLE — LATRINE / HWS SERIAL # (UID)
1. Tissue Holder (Stocked Min 3 Biodegradable Rolls)	_____	_____	_____
2. Commode Seat & Cover	_____	_____	_____
3. Urinal	_____	_____	_____
4. Inside Latch/Lock	_____	_____	_____
5. Coat Hook	_____	_____	_____
6. Door Tight Fitting & Self-Closing Spring	_____	_____	_____
7. No Holes in Surfaces / Fly-Tight Screening & Anchored (45 MPH)	_____	_____	_____
8. Clean/Sanitary & Recharged (Hand-Wash: Water/Soap/Towels Full)	_____	_____	_____
9. Date/Service Sticker & Exterior UID Visible	_____	_____	_____

Discrepancies:

_____

_____

_____

_____

_____
_____

DATE OF INSPECTION: ____/____/20____

USING UNIT REPRESENTATIVE (Print): _____
DUTY PHONE: _____

USING UNIT / COR SIGNATURE:

_____
___

CONTRACTOR REP NAME & SIGNATURE: (Print)
_____ (Sign) _____

ATTACHMENT 1

PORTABLE TOILETS – POST WIDE DAILY INSPECTION WORK SHEET

DATE: _____ DAY OF WEEK: _____

INSPECTED BY: _____

INSPECTION ITEM (S = SAT / U = UNSAT)	Sample 1	Sample 2	Sample 3	Sample 4	Sample 5
RANDOM SAMPLE NO.					
BPA CALL NO. & SLIN (AA / AB / AC / AD)					
SERIAL NUMBER (UID)					
BUILDING NUMBER / 8-DIGIT GRID COORDINATE					
TIME INSPECTED					
NO TISSUE OR HOLDER (MIN 3 BIODEGRADABLE ROLLS)					
COMMODE SEAT/COVER					
URINAL NOT INSTALLED / DAMAGED					
NO INSIDE LATCH / LOCK					
NO COAT HOOK					
DOOR SELF CLOSING					
DOOR TIGHT FITTING					
NOT FLY TIGHT / NOT ANCHORED (45 MPH)					
NEEDS TO BE REPLACED (WITHIN 24 HRS)					
URINE/WASTE OR GRAY-WATER TANK DIRTY / FULL					
NOT CLEAN/UNSANITARY (HAND-WASH UNSTOCKED)					
NO DATE STICKER					
SPILLAGE OR TRASH (2-FT PERIMETER / REMEDIATION)					
OVERALL RATING (S = SAT / U = UNSAT)					

REMARKS:

_____
_____
_____
_____
_____
_____